



SPONSOR: Sen. Sturgeon & Rep. Wilson-Anton
Reps. Burns, Morrison, Neal

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 117

AN ACT AMEND TITLE 18 AND TITLE 29 OF THE DELAWARE CODE RELATING TO HEARING AID
COVERAGE FOR INDIVIDUALS YOUNGER THAN 24 YEARS OLD.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 3357, Title 18 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 3357. Hearing aid coverage.

(a) For purposes of this section, ~~the term~~ "hearing aid" means any nonexperimental, wearable instrument or device
designed for the ear and offered for the purpose of aiding or compensating for impaired human hearing, ~~but excluding~~
~~batteries, cords, and other assistive listening devices such as FM systems.~~ hearing and any related parts, attachments, or
accessories, including earmolds.

(b)(1) ~~Every~~ All individual health insurance contract, ~~including each policy or contract issued by a health service~~
~~corporation, which is policies, contracts, or certificates that are delivered, issued for delivery, or renewed in this State on or~~
after January 1, 2009, shall provide coverage of up to \$1000 per individual hearing aid, per ear, every 3 years, for children
less than 24 years of age, covered as a dependent by the policy holder. medically necessary hearing aids as follows:

a. For individuals younger than 24 years old, covered as a dependent by the policyholder, all of the
following:

1. At least 1 hearing aid for each ear at least every 3 years or, prior to the expiration of the 3-year
period, whenever a hearing care professional determines a new hearing aid is medically necessary for 1 or
both ears.

2. For a hearing aid with an earmold, at least 1 earmold for each ear at least annually or, prior to the
expiration of the 1-year period, whenever a hearing care professional determines a new earmold is medically
necessary for 1 or both ears.

b. The coverage required under paragraph (b)(1)a. of this section includes the services of a hearing care
professional relating to prescribing, fitting, or dispensing the hearing aid.

c. Reimbursement must be provided according to the insurer's respective principles and policies.

(2) An insurer may require a covered individual to provide a prescription or other suitable documentation to prove the need for a hearing aid.

~~(c) The insured may choose a hearing aid exceeding \$1,000 and pay the difference in cost above the amount of coverage required by this section. Reimbursement shall be provided according to the respective principles and policies of the insurer. The insurer may require the policyholder to provide a prescription or show proof through other suitable documentation of the need for a hearing aid and nothing contained (c)(1) Nothing in this section shall preclude prevents the insurer from conducting managed care, medical necessity, or utilization review or prevent review.~~

(3) Nothing in this section prevents the operation of such a policy provision as deductibles, provision required by this section as a deductible, coinsurance, allowable charge limitations, limitation, coordination of benefits benefits, or provisions a provision restricting coverage to services by licensed, certified certified, or carrier-approved providers or facilities.

(d) This section does not apply to insurance coverage providing benefits for: any of the following limited benefit health insurance policies:

(1) Hospital confinement ~~indemnity;~~ indemnity.

(2) Disability ~~income;~~ income.

(3) Accident ~~only;~~ only.

(4) Long-term ~~care;~~ care.

(5) Medicare ~~supplement;~~ supplement.

(6) Limited benefit ~~health;~~ health.

(7) Specified ~~diseased indemnity;~~ disease indemnity.

(8) Sickness or bodily injury or death by ~~accident, or both; and~~ accident.

(9) Other limited benefit policies.

Section 2. Amend § 3571A, Title 18 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3571A. Hearing aid coverage.

(a) For purposes of this section, ~~the term~~ “hearing aid” means any nonexperimental, wearable instrument or device designed for the ear and offered for the purpose of aiding or compensating for impaired human hearing, ~~but excluding hearing and any related parts, attachments, or accessories, including earmolds.~~

~~(b)(1) Every All group and blanket health insurance contract, including each policy or contract issued by a health service corporation, which is policies, contracts, or certificates that are~~ delivered, issued for delivery, or renewed in this

State ~~on or after January 1, 2009,~~ shall provide coverage of ~~up to \$1000 per individual hearing aid, per ear, every 3 years,~~
~~for children less than 24 years of age, covered as a dependent by the policy holder.~~ medically necessary hearing aids as
follows:

a. For individuals younger than 24 years old, covered as a dependent by the policyholder, all of the
following:

1. At least 1 hearing aid for each ear at least every 3 years or, prior to the expiration of the 3-year
period, whenever a hearing care professional determines a new hearing aid is medically necessary for 1 or
both ears.

2. For a hearing aid with an earmold, at least 1 earmold for each ear at least annually or, prior to the
expiration of the 1-year period, whenever a hearing care professional determines a new earmold is medically
necessary for 1 or both ears.

b. The coverage required under paragraph (b)(1)a. of this section includes the services of a hearing care
professional relating to prescribing, fitting, or dispensing the hearing aid.

c. Reimbursement must be provided according to the insurer's respective principles and policies.

(2) An insurer may require a covered individual to provide a prescription or other suitable documentation to
prove the need for a hearing aid.

~~(c) The insured may choose a hearing aid exceeding \$1,000 and pay the difference in cost above the amount of~~
~~coverage required by this section. Reimbursement shall be provided according to the respective principles and policies of~~
~~the insurer. The insurer may require the policyholder to provide a prescription or show proof through other suitable~~
~~documentation of the need for a hearing aid and nothing contained (c)(1) Nothing in this section shall preclude prevents the~~
insurer from conducting managed care, medical necessity, or utilization ~~review or prevent review.~~

(3) Nothing in this section prevents the operation of such a policy provision as deductibles, provision required
by this section as a deductible, coinsurance, allowable charge limitations, limitation, coordination of benefits benefits,
or provisions a provision restricting coverage to services by licensed, certified certified, or carrier-approved providers
or facilities.

(d) This section does not apply to insurance coverage providing benefits for: any of the following limited benefit
health insurance policies:

(1) Hospital confinement indemnity; indemnity.

(2) Disability income; income.

(3) Accident only; only.

- (4) Long-term ~~care~~; care.
- (5) Medicare ~~supplement~~; supplement.
- (6) Limited benefit ~~health~~; health.
- (7) Specified ~~diseased indemnity~~; disease indemnity.
- (8) Sickness or bodily injury or death by ~~accident, or both~~; and accident.
- (9) Other limited benefit policies.

Section 3. Amend Chapter 52, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5223. Hearing aid coverage.

(a) For purposes of this section, "hearing aid" means any nonexperimental, wearable instrument or device designed for the ear and offered for the purpose of aiding or compensating for impaired human hearing and any related parts, attachments, or accessories, including earmolds.

(b)(1) The plan shall provide coverage of medically necessary hearing aids as follows:

a. For individuals younger than 24 years old, covered as a dependent by the policyholder, all of the following:

1. At least 1 hearing aid for each ear at least every 3 years or, prior to the expiration of the 3-year period, whenever a hearing care professional determines a new hearing aid is medically necessary for 1 or both ears.

2. For a hearing aid with an earmold, at least 1 earmold for each ear at least annually or, prior to the expiration of the 1-year period, whenever a hearing care professional determines a new earmold is medically necessary for 1 or both ears.

b. The coverage required under paragraph (b)(1)a. of this section includes the services of a hearing care professional relating to prescribing, fitting, or dispensing the hearing aid.

Section 4. This Act applies to all policies, contracts, or certificates issued, renewed, modified, altered, amended, or reissued after December 31, 2026.

SYNOPSIS

Early access to language is essential to child development. Children identified as Deaf or hard of hearing, rely on hearing aids for language development. Language development leads to success in school. Medicaid coverage of hearing aids for children younger than 21 years old applies only to children who qualify. Delaware currently requires private insurers to provide minimum coverage of \$1,000 for each hearing aid for individuals younger than 24 years old, covered as a dependent by the policyholder. The cost of pediatric hearing aids can vary widely but can cost from \$3,000 to \$5,000 out-of-pocket. This can be too expensive for families who are not qualified for Medicaid coverage, even with the current \$1,000 coverage requirement.

This Act increases the minimum required coverage for hearing aids by requiring insurers to cover the entire cost of medically necessary hearing aids, and the services of a hearing care professional related to prescribing, fitting, or dispensing the hearing aid or earmold, for individuals younger than 24 years old, covered as a dependent by the policyholder. Insurers are required to cover hearing aids at least every 3 years, or sooner if new hearing aids are medically necessary. For hearing aids with earmolds, insurers are required to cover earmolds at least annually, or sooner if new earmolds are medically necessary. For purposes of the coverage requirement, "hearing aid" means any non-experimental, wearable instrument or device designed for the ear and offered for the purpose of aiding or compensating for impaired human hearing and any related parts, attachments, or accessories, including earmolds.

The required coverage for hearing aids applies to all of the following:

1. Individual policies under Chapter 33 of Title 18.
2. Group and blanket policies under Chapter 35 of Title 18.
3. The State employee health plan under Chapter 52 of Title 29.

The Act applies to all policies, contracts, or certificates issued, renewed, modified, altered, amended, or reissued after December 31, 2026.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual and reorganizes paragraphs for clarity.

Author: Senator Sturgeon